Montgomery County District Court

Cause No. 2025-CV-0002

William Stone, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-16-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally denying each and every allegation conatined therein, and demands strict proof thereof by a preponderance of the evidence, as permitted under Texas Rule of Civil Procedure 92.

For its affirmative defenses, Defendant states as follows. First, Plaintiff's claimed injuries were not proximately caused by the inciednt described in the Petition. The collision was a low-speed impact, and the forces involved were insufficient to produce the injuries Plaintiff alleges, which may be attributable to pre-existing conditions or unrelated events. Second, Plaintiff failed to exercise oridnary care to mitigate damages, including by not following reasonable medical recommendations and by delaying treatment, and any recovery must be reduced accordingly. Third, Plaintiff's own negligence contributed to the occurrence, and under Chapter 33 of the Texas Civil Practice and Remdeies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and barred entirely if that percentage exceeds fifty percent.

Defendant reserves the right to amend this Answer as discovery proceeds.